brakes, in operations other than driveaway or towaway, shall in addition to the above be equipped with two means of activating the emergency features of the trailer brakes. One of these means shall operate automatically in the event of reduction of the towing vehicle air supply to a fixed pressure which shall be not lower than 20 pounds per square inch nor higher than 45 pounds per square inch. The other means shall be a manually controlled device readily operable by a person seated in the driving seat, and its emergency position or method of operation shall be clearly indicated. In no instance may the manual means be so arranged as to permit its use to prevent operation of the automatic means. The automatic and manual means of application required by this section may be, but are not required to be, separate.

(b) Every truck-tractor and truck used for towing other vehicles equipped with vacuum brakes, in operations other than driveaway and towaway on and after January 1, 1957, shall have, in addition to the single controlled by § 193.49 to operate all brakes of the combination, a second control device independent of brake air, hydraulic, or other pressure and independent of other controls, which can be used to operate the brakes on the towed vehicles in emergencies. Such second control is not required by this rule to provide modulated or graduated braking.

§ 193.50 *Reservoirs required.* Every bus, truck, and truck-tractor, the date of manufacture of which is subsequent to June 30, 1953, and which is equipped with an air or vacuum brake system, shall be equipped with reserve capacity or a reservoir sufficient to insure a brake application capable of stopping the vehicle within the stopping distance requirements of § 193.52 in the event the engine stops. No such reserve capacity or reservoir shall be required on single vehicles if the braking system is so designed and installed as to provide for application of the service brakes through hydraulic or mechanical means in event of failure of the air or vacuum system or the source of supply of such systems. In addition, every truck-tractor and every truck used for towing other vehicles shall when equipped with air or vacuum reservoirs as required by this section, and regardless of date of manufacture, have such air or vacuum reservoirs so safeguarded by a check valve or equivalent device that in the event of failure or leakage in its connection to the source of compressed air or vacuum the air or vacuum supply in the reservoir shall not be depleted by the leak or failure.

§ 193.51 *Warning devices.* Every bus, truck, and truck-tractor equipped with an air brake system, and on and after January 1, 1957, every truck-tractor and every truck used for towing a vehicle required to have brakes, if the brakes are vacuum-operated, shall be provided with either an audible or visible warning signal to indicate readily to the driver any loss or lack of air or vacuum sufficient to prevent the vehicle from being stopped. A gage indicating pressure or vacuum shall not be deemed to be an adequate means of satisfying this requirement.

Notice of this order shall be given to the general public by depositing a copy thereof in the office of the Secretary of the Commission, Washington, D. C., and by filing a copy thereof with the Director, Division of the Federal Register.

(49 Stat. 546, as amended; 49 U. S. C. 304)

By the Commission.

[SEAL] HAROLD D. McCOY,
Secretary.

[F. R. Doc. 56-4320; Filed, June 1, 1956; 8:48 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1301]

[590299]

ALASKA

TRANSFERRING LAND RESERVED BY EXECUTIVE ORDER NO. 2347 OF MARCH 21, 1916, FROM ALASKA NATIVE SERVICE TO BUREAU OF LAND MANAGEMENT FOR PUBLIC RECREATIONAL PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public land in Alaska, which was withdrawn by Executive Order No. 2347 of March 21, 1916, from settlement, location, entry, and all forms of disposal and reserved for use of the Alaska Native Service as a fishing site, is hereby transferred from the Alaska Native Service to the Bureau of Land Management for public recreational purposes:

SEWARD MERIDIAN

T. 16 N., R. 3 W.,
Sec. 34, NE¼NE¼.

The area described contains 40 acres.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

MAY 28, 1956.

[F. R. Doc. 56-4315; Filed, June 1, 1956; 8:47 a. m.]

[Public Land Order 1302]

[69921]

ALASKA

EXCLUDING CERTAIN TRACTS FROM CHUGACH NATIONAL FOREST AND RESTORING THEM FOR PURCHASE AS HOMESITES

By virtue of the authority vested in the President by section 1 of the act of June 4, 1897 (30 Stat. 34, 36; 16 U. S. C. 473), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

The following-described tracts of public land in Alaska, occupied as homesites and identified by surveys of which plats and field notes are on file in the Bureau of Land Management, are hereby excluded from the Chugach National Forest, Alaska, as hereinafter indicated, and restored, subject to valid existing rights, for purchase as homesites under section 10 of the act of May 14, 1898, as amended by the act of May 26, 1934 (48 Stat. 809; 48 U. S. C. 461):

U. S. Survey No. 2757, lot 6, 2.25 acres; latitude 60°55'26" N., longitude 149°39'20" W. (Homesite No. 78, Porcupine Group).

U. S. Survey No. 2533, lot G, 3.84 acres; latitude 60°21'28" N., longitude 149°21'20" W. (Homesite No. 85, Lakeview Group).

U. S. Survey No. 2520, lot D, 4.37 acres; latitude 60°24'26" N., longitude 149°22' W. (Homesite No. 149, Fall Creek Group).

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

MAY 28, 1956.

[F. R. Doc. 56-4316; Filed, June 1, 1956; 8:47 a. m.]

[Public Land Order 1303]

[1023169]

IDAHO

REVOKING EXECUTIVE ORDER NO. 3684 OF MAY 25, 1922, WHICH WITHDREW LANDS FOR USE BY STATE OF IDAHO NATIONAL GUARD AS RIFLE RANGE

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 3684 of May 25, 1922, temporarily withdrawing the unsurveyed islands belonging to the United States situated in section 7, T. 3 S., R. 35 E., Boise Meridian, for use by the State of Idaho National Guard as a rifle range, is hereby revoked.

The released lands lie approximately west of the Town of Blackfoot, Idaho, at an elevation of about 4,475 feet. Generally, the lands are typical river-bottom type with modest surface undulation due to some cutting during high-water periods. Vegetative cover is primarily of cottonwood trees, willows, briars, and some sagebrush with understory of grass. The land, which is within Idaho Grazing District No. 3, is valuable for the grazing of livestock.

No application for the restored lands may be allowed under the homestead, desert-land, small tract, or any other non-mineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

Subject to any existing valid rights and the requirements of applicable law, the lands are hereby opened to filing of such applications, selections, and locations as are permitted on unsurveyed lands in accordance with the following:

a. Applications and selections which are permitted on unsurveyed lands under

the non-mineral public-land laws and applications and offers under the mineral-leasing laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications, selections, and offers will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having preference rights conferred by existing laws or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m. on July 3, 1956, will be considered as simultaneously filed at that hour. Rights under such preference right applications after that hour and before 10:00 a. m. on October 2, 1956, will be governed by the time of filing.

(3) All valid applications and selections under the non-mineral public-land laws, other than those coming under paragraphs (1) and (2) above, and applications and offers under the mineral-leasing laws, presented prior to 10:00 a. m. on October 2, 1956, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands have been open to applications and offers under the mineral-leasing laws, and to location for metalliferous minerals. They will be open to location for non-metalliferous minerals under the United States mining laws beginning at 10:00 a. m. on October 2, 1956.

Persons claiming veterans preference rights under paragraph (2) above must enclose with their application proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon statutory preference or equitable claims must enclose properly corroborated statements in support of their applications, setting forth all facts relevant to their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Boise, Idaho.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

MAY 28, 1956.

[F. R. Doc. 56-4317; Filed, June 1, 1956; 8:47 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE INTERIOR

Fish and Wildlife Service

[50 CFR Part 6]

MIGRATORY BIRDS AND CERTAIN GAME MAMMALS

NOTICE OF PROPOSED RULE MAKING

Pursuant to section 4 (a) of the Administrative Procedure Act, approved June 11, 1946 (60 Stat. 237), notice is hereby given that the Director, Fish and Wildlife Service, proposes to recommend the adoption by the Secretary of the Interior, under authority contained in section 3 of the Migratory Bird Treaty Act of July 3, 1918, as amended (40 Stat. 755; 16 U. S. C. 704), of amendments to Part 6, Title 50, Code of Federal Regulations, which will specify open seasons, certain closed seasons, means of hunting, shooting hours, and bag limits for migratory game birds.

The proposed amendments specifying open seasons and bag limits for migratory game birds, except waterfowl and coots (but including scoter, eider and old-squaw ducks in open coastal waters beyond outer harbor lines in certain North Atlantic Coast States and waterfowl and coots in Alaska), and those relating to other matters will be proposed for final adoption not later than August 1, 1956 to become effective September 1, 1956. Proposed amendments specifying open seasons, bag limits, and shooting hours for other waterfowl and coots will be proposed for adoption not later than September 1, 1956 to become effective not later than October 1, 1956.

The public is hereby invited to participate in the preparation of the amended regulations to be adopted as set forth above by submitting their views, data or arguments in writing to the Director, Fish and Wildlife Service, Department of the Interior, Washington 25, D. C., within the period of thirty (30) days from the date of publication of this notice in the FEDERAL REGISTER.

Dated: May 28, 1956.

JOHN L. FARLEY,
Director.

[F. R. Doc. 56-4326; Filed, June 1, 1956; 8:49 a. m.]

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 51]

SHELLED RUNNER TYPE PEANUTS, SHELLED SPANISH TYPE PEANUTS, AND SHELLED VIRGINIA TYPE PEANUTS

ADDITIONAL TIME FOR FILING DATA, VIEWS, OR ARGUMENTS RELATIVE TO STANDARDS

Proposed United States Standards for Shelled Runner Type Peanuts, United States Standards for Shelled Spanish Type Peanuts and United States Standards for Shelled Virginia Type Peanuts were set forth in the notices which were published in the FEDERAL REGISTER of April 18, 1956 (21 F. R. 2529, 21 F. R. 2530, and 21 F. R. 2531, respectively).

In consideration of comments and suggestions received indicating the need for further study of the proposals, notice is hereby given of an additional period of time until June 15, 1956, within which written data, views, or arguments may be received from interested parties for consideration in connection with the aforesaid proposed United States Standards for Shelled Runner Type Peanuts, United States Standards for Shelled Spanish Type Peanuts, and United States Standards for Shelled Virginia Type Peanuts.

Dated: May 28, 1956.

[SEAL] F. R. BURKE,
Acting Deputy Administrator, Marketing Services.

[F. R. Doc. 56-4314; Filed, June 1, 1956; 8:47 a. m.]

[7 CFR Parts 927, 990]

[Docket Nos. AO-71-A-32, AO-284]

HANDLING OF MILK IN NEW YORK METROPOLITAN MARKETING AREA AND IN NORTHERN NEW JERSEY

SUPPLEMENTAL NOTICE OF HEARING

Notice was issued on May 18, 1956, and published in the FEDERAL REGISTER on May 25, 1956 (21 F. R. 3537), of a public hearing beginning on June 18, 1956, at Newark, New Jersey, on proposed amendments to the tentative marketing agreement and to the order, as amended, regulating the handling of milk in the New York metropolitan milk marketing area, and on a proposed marketing agreement and order regulating the handling of milk in the Northern New Jersey milk marketing area.

Notice is hereby given, pursuant to provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure, as amended, governing the formulation of marketing agreements and orders (7 CFR Part 900), that, in addition to the proposed expansion of the present New York metropolitan milk marketing area as set forth in the said notice of May 18,